

		Within five (5) days of this ruling, Plaintiff shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling, with proper formatting as the current [REVISED PROPOSED] FINAL APPROVAL ORDER AND JUDGMENT (ROA 256) has formatting errors, and must be amended to expressly state that Carol Dyer and Theresa Vigil, who submitted Requests for Exclusion, are not bound by the judgment with respect to the class claims. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
3	30-2024-01420491 Hassan vs. F2 TPS, LLC.	The tentative ruling is to continue the hearing on Plaintiff Malek Taisir Hassan's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") to November 2, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiff has not submitted his attorneys' bills or a detailed hourly breakdown of his attorneys' hours to support the court's review of plaintiff's attorneys' fees request. Plaintiff has also failed to provide the number of years of relevant experience for the following timekeepers to support the reasonableness of their hourly rates: Robert Wilson, Vedang J. Patel, Megan Lazar, Joseph Rocha, Alexa R. Guzman, Bradford Smith, and Katherine Willis. Plaintiff is required to provide sufficient information to support the court's lodestar cross-check of the fee request. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size.

		The court disallows the attorney costs amount claimed for postage, copies, scans, and faxes because the court considers these cost items to be properly part of attorney overhead. \$86.95 should be deducted from the attorney costs request. The parties have not provided the court with any declaration from PAGA Counsel (David B. Bibiyan and Vedang J. Patel) as to any potential conflict of interest as to the proposed cy pres recipient, as required by CCP §382.4. There is an escalator clause in the settlement agreement, but this is a motion to have the settlement fully approved and so a specific gross settlement amount must be approved on the granting of this motion. At this point in time the parties should know or be able to determine the number of aggrieved employees and qualifying pay periods based on the PAGA Period the parties are using. Paragraph 5.1 of the settlement agreement includes a release for the following claims for PAGA penalties: “failure to pay vacation upon separation, sick leave violations, failure to indemnify for necessary expenses, failure to provide suitable seats, failure to provide adequate sanitation facilities, unlawful background checks, improperly relying on prior salary history, unlawful confidentiality policies, restricting employees from discussing wages and working conditions, preventing employees from using skills and experience gained during employment, preventing employees from disclosing violations of law, and preventing employees from engaging in lawful conduct during non-work hours.” However, Plaintiff provides no information as to defendant’s potential exposure for the violations alleged. Plaintiff must provide the court with information showing what potential outcome aggrieved employees are giving up in exchange for this settlement. Further, the release in the cover letter does not match the language of the release in the settlement agreement. The language must be consistent. The cover letter must explain that no claims for unpaid or underpaid wages have settled, and that this settlement is without prejudice to the pursuit of any such claims. Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the
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		settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
4	30-2025-01476450 Benitez vs. American Caregivers, Inc.	The tentative ruling is to continue the hearing on Plaintiff Rosa Marin Benitez’s (“Plaintiff”) Motion for Approval of Settlement Under Private Attorneys General Act (“PAGA”) to November 2, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiff has not explained how this settlement affects related case, <i>Rosa Marin Benitez v. American Caregivers, Inc., et al.</i>, OCSC Case No. 2025-01452435-CU-OE-CXC (Notice of Related Case [ROA 17].) The moving papers do not include a copy of the January 13, 2025 LWDA letter. (Hawkins Dec. ¶ 3.) The court needs a copy of the letter to verify that the settlement terms are consistent with the notice provided to the LWDA. Plaintiff’s counsel states that the parties reached a settlement after the July 17, 2025 mediation, but the settlement agreement states that a second mediation was held on October 28, 2025, and the settlement agreement was resolved after the second mediation. (Hawkins Dec. ¶¶ 5-6; Settlement § II(3).) Plaintiff must provide further clarification as to this inconsistency.